Unsuccessful attempts to inject the plea of the corporate form into cases ruled by a consideration of rights that were wholly outside the corporate relation are *Ritchie* v. *McMullen* (C. C. A.) (79 Fed. 522) and *General Rubber Co.* v. *Benedict* (215 N. Y. 18, 21). In a case of this character one quite similar in many respects to the case at bar (*Matter of Jenkins*, 4 States Rep. New South Wales, 625) on an accounting in probate, it developed that one trustee was a member and director of an incorporated real estate agent. WALKER, J., held that the trustees should not be credited with a payment made to the agent for services rendered, and wrote that cases like *Salomon* v. *Salomon & Co.* [1897] (App. Cas. 22), were decided *alio intuitu*, and in no way conflict with the equitable rule that a trustee shall not be allowed to make a profit out of his trust. He said "the question I have now to determine is not, as it seems to me, a question of the meaning of letters patent or Acts of Parliament, but of the extent and operation of a rule which is the creature of Courts of Equity." To the same effect is *Wendt* v. *Fischer* (243 N. Y. 439).

My conclusion from the foregoing review is that the law has neither a "personality" nor an "entity" to deal with, and that there is no "veil." These terms are useful as metaphors or figures of speech to meet a common need in discussing the legal principles involved. As explaining their use, Miraglia says in his Comparative Legal Philosophy (p. 364): "Private law cannot consider any other subject than a real person."

Tourtoulon, in his Philosophy in the Development of Law (p. 391) says: "A fiction, be it understood, is only a juridical 'construction' like any other. It represents the law both good and bad, but has no claim to create law. To try to make strict and logical deductions from it is nonsense." To the same effect, Kohler, Philosophy of Law (67, 68).

Laying, then, these figures or fictions or other convenient instruments of thought aside, I take two very useful and concrete expressions of the true character and legal significance of a corporation from two wholly different sources: Woodrow Wilson, in an address delivered before the American Bar Association at Chattanooga, Tenn., in 1910 (35 Am. Bar Assn. Rep. 426, 433), said: "A corporation is merely a convenient instrument of business and we may regulate its use as we please and those who use it."

While Professor Hohfeld, in his Fundamental Legal Conceptions (pp. 189, 199) expresses the suggestive thought that it has always been recognized that "transacting business under the forms, methods, and procedure pertaining to so-called corporations is simply another mode by which *individuals* or *natural persons* can

enjoy their property and engage in business," and that " when * * * we speak of the corporation * * * contracting in the corporate name, etc., we are merely employing a short and convenient mode of describing the complex and peculiar process by which the benefits and burdens of the corporate members are worked out."

The concrete import of these views is that a corporation is more nearly a method than a thing, and that the law in dealing with a corporation has no need of defining it as a person or an entity, or even as an embodiment of functions, rights and duties, but may treat it as a name for a useful and usual collection of jural relations, each one of which must in every instance be ascertained, analyzed and assigned to its appropriate place according to the circumstances of the particular case, having due regard to the purposes to be achieved. A confirmation of the accuracy of this analysis of the corporate form is found in the fact that the word " corporation " has a variable, not a constant, meaning.

The rights and obligations that are comprised within the compass of the word change not only with time, but with locality. Limited liability of the shareholders is a comparatively recent invention. Limited and unlimited liability existed side by side, even within this State, under chapter 611 of the Laws of 1875. The extent of limited liability varies under different statutes. Corporations with no par stock are now quite common. Methods of transacting business, conditions under which dividends may be declared, and all the details of what are commonly known as corporate activity are actually different in different jurisdictions. Moreover, endless variants of those features may be conceived of without doing violence to the general designation " corporation." Indeed, the charter of the Ramapo Manufacturing Company itself — the corporation here under consideration — affords a striking illustration of the variants of powers, liabilities and duties which may be properly included in the corporate form.

I come, then, to ask the significance of the particular claim made before me by these trustees who wish it decreed that in their accounting they stop at the point where they have become directors of a corporation. I lay aside for the moment the fact of the identity of persons, although it is not, I think, to be wholly disregarded in the final outcome. What meaning has their statement that they are directors of a corporation? Is this directorate a form of immunity? Is this position something within a " veil? " It seems to me that no one of the purposes or functions legitimately included in the general scope of incorporation has any relevancy to an accounting by these trustees. If the testator considered it

useful or convenient to avail himself of any corporate faculties in the conduct of his business, I see no reason why that consideration should be allowed to interfere with his declared purpose to have his property cared for after his death by trustees for the benefit of certain named beneficiaries according to the ordinary rules relating to trusts.

Perhaps these trustees are under a misapprehension that the mere fact that they are directors of a corporation deprives them of the right or even forbids them to tell the affairs of the company to the real stockholders, their beneficiaries under the trust. But stockholders are entitled to know all about the affairs of their corporation. There are, of course, utilitarian considerations and pragmatic reasons why the directors of a corporation cannot devote their entire lives to an uninterrupted narration to separate stockholders of the minute details of the affairs of their corporation. Practical difficulties involved in such situations are readily solved by the courts through the application of ordinary common sense. But the right of the stockholders to know about their own business — for they are the real owners — can hardly be questioned. (*Matter of Steinway*, 159 N. Y. 250; *Guthrie* v. *Harkness*, 199 U. S. 148; *Klotz* v. *Pan-American Match Co.*, 221 Mass. 38; *Matter of Wygant*, 101 Misc. 509; *Sage* v. *Culver*, 147 N. Y. 241, 247; *Otis-Hidden Co.* v. *Scheirich*, 187 Ky. 423; *People ex rel. Manice* v. *Powell*, 201 N. Y. 194, 201; *Matter of Fitch*, 160 id. 87, 95; *Hale* v. *Mason*, Id. 561.) The directors occupy a very real and broad fiduciary relation to the stockholders. (*Strong* v. *Repide*, 213 U. S. 419, 431; *Bosworth* v. *Allen*, 168 N. Y. 157.)

Be it understood that this is not a case where stockholders or others situated like *cestuis que trust* desire to bring an action for the recovery of money or property against fiduciaries who have been derelict in their duty toward the corpus of the trust, whether in the form of a corporation or otherwise. Naturally, in such an action there must be allegations of wrongdoing, otherwise the action itself would be baseless. There is here a tendency to confound the two meanings of accounting: (1) That of merely informing the *cestui que trust* of all things which he is entitled to know; (2) actually responding to such liability as may be incurred by the fiduciary in the management of the trust. In this case the beneficiaries desire only information, and since the trust includes, not only theoretically, but actually and practically, the management of the corporate affairs, and since there is no obstacle or forbiddance in the way of or against furnishing the information, the *cestuis* need do no more than ask for the information in order to become entitled thereto. (*Frethey* v. *Durant*, 24 App. Div. 58; *Rose* v. *Durant*, 44